

ENTITLED: “AN ORDINANCE PURSUANT TO SECTION 2.2.2 PLANNED DEVELOPMENT REGULATING PLAN AND SECTION 5.6.2 PUD – PLANNED UNIT DEVELOPMENT DISTRICT, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE (UDC) AMENDING ORDINANCE NUMBER 3741, WHICH ESTABLISHED THE VILLAGE PLANNED UNIT DEVELOPMENT (PUD), BY ADDING INDOOR ENTERTAINMENT AS A LAND USE CATEGORY PERMITTED AS OF RIGHT, WITH CONDITIONS, FOR LOT 28 OF BLOCK 2 OF THE VILLAGE PUD, ADDING A NEW SECTION 5.11 TO DEFER TO THE UDC STANDARDS WHERE THE PUD IS SILENT ON DEVELOPMENT STANDARDS, AND, PURSUANT TO SECTION 2.2.1 OF THE UDC, AMENDING THE VILLAGE PUD MAP TO REFLECT LOT 28 INSTEAD OF LOTS 30 AND 31 OF THE VILLAGE SUBDIVISION FOR THE SUBJECT PARCEL, CHEYENNE, WYOMING (LOCATED WEST OF AND ADJACENT TO POWDERHOUSE ROAD, SOUTH OF OLD TOWN LANE).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That fifty percent of the owners of property, measured by both land area and assessed value, lying within The Village Planned Unit Development (“PUD”) described herein, have submitted an application to amend to the PUD pursuant to Sections 2.2.1, 2.2.2 and 5.6.2.h of the Cheyenne Unified Development Code (“UDC”); the PUD was established by the Governing Body by Ordinance No. 3741 on February 12, 2007.

Section 2. That on January 7, 2019, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the Applicant’s proposed amendments to the Village PUD map and text that are the subject of this ordinance, listened to significant public comment testifying of their concerns about safety in the neighborhood with the proposed indoor entertainment use based on criminal activity taking place at the Applicant’s current location, and found that the proposed amendment would not address the eight review criteria of 2.2.1.d for the PUD Map Amendment and the fifteen review criteria of Section 2.2.2.d for the text amendment, and recommended that the Governing Body deny the PUD amendments described herein.

Section 3. That on January 23, 2019, the Public Services Committee of the Governing Body of the City of Cheyenne heard the Planning Commission’s recommendation of denial and testimony from the Police Chief and the Applicant regarding security measures that could be expected to mitigate safety concerns for the neighborhood and the Committee recommended that the indoor entertainment use be removed from the Section 6.1 As-of-Right category and a new Conditional Use category be established for the PUD and indoor entertainment be allowed as a Conditional Use for Lot 28.

Section 4. That on January 28, 2019, the Governing Body of the City of Cheyenne considered the Public Services Committee proposed amendment to allow the indoor

entertainment use of the Wyoming Downs pari-mutuel Off Track Betting wagering activity as a conditional use for Lot 28 of the PUD and, instead, voted to allow it as-of-right with the condition that a site plan be required for such an application and, at a minimum, the safety and security measures recommended by the Cheyenne Police Chief be established as conditions of approval of the Wyoming Downs establishment on Lot 28 within The Village PUD.

Section 5. That the Governing Body finds that The Village PUD amendments that are the subject of this ordinance do meet the criteria specified in Sections 2.2.1.d and 2.2.2.d of the UDC.

Section 6. That, in accordance with Section 2.2.2, Planned Development Plan, Section 5.1.3, Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District, of the UDC, the application is hereby approved.

Section 7. That, in accordance with UDC Section 5.6.2, the land use, design and development standards and guidelines described herein shall govern this PUD zoning classification.

Section 7.1. Uses by Right.

1. Block 1, Lot 32, Block 2, Lot 30 and 31; Open Space
2. Block 1, Lots 1-8, Block 2, Lots 1-16; Townhouses
3. Block 1, Lots 26-30, Block 2, Lot 27;
 - A. Loft Residential
 - B. Entertainment and recreation facilities and uses
 - C. Fast-Food Restaurant without Drive-Through Window (ITE Manual Land Use 933) with two thousand (2,000) square feet or less of gross floor area. (or current equivalent).
 - D. General Offices
 - E. Retail and wholesale establishments
 - F. Service Businesses
 - G. Medical Offices
4. Block 1, Lot 25;
 - A. Loft Residential
 - B. Entertainment and recreation facilities and uses
 - C. Coffee Shop with Drive-Through Window
 - D. General Offices
 - E. Retail and wholesale establishments with Drive-Through Window
 - F. Service Businesses with Drive-Through Window
5. Block 2, Lot 28; Restaurant, **Indoor Entertainment**
 - a. **In addition to incorporating project design and operation measures required to positively address the site plan review criteria of UDC Section 2.2.3.d, an indoor entertainment application for Lot 28 must also incorporate design and operation measures to meet conditions placed on the project by the Cheyenne Police Department that address safety and security concerns for the site and surrounding neighborhoods.**
6. Block 1, Lot 31, Block 2, Lot 29; Parking areas

7. Block 1, Lots 9-24, Block 2, Lots 17-26 Garages

Section 7.2. Minimum Property Area and Maximum Building Coverage.

A. Minimum Property Area

1. Townhouse lots as platted
2. Mixed Use Buildings as platted
3. ~~Restaurant~~ **Commercial uses** as platted
4. Garages lots as platted

B. Maximum Building Coverage.

Total building and parking area shall not exceed eighty-five (85) percent of the entire Village property area.

Each building not within the common space and parking areas may cover up to 100% of platted lot.

Section 7.3. Maximum Building Height.

The maximum building height for mixed use and commercial buildings shall not exceed two stories and 50-feet from the foundation to the ridgeline of the roof to account for architectural features.

The maximum building height for townhouses is 30 feet.

Section 7.4. Setbacks.

Setbacks for all buildings shall be twenty (20) feet from Sycamore Road, three (3) feet from Old Town Lane, ten (10) feet from Powderhouse Road, seven and one half (7.5) feet from the north plat boundary line and ten (10) feet from the south plat boundary line.

The buffering in this development is provided via the open space located between the lot lines and the adjacent city of Cheyenne right of way or adjoining property lines.

Setbacks are to foundation lines. Soffets, canopies, decorative architecture, balconies, awnings, emergency access stairs that are designed to match the building that they are attached to, covered entrances or support for all of the above, will not protrude into the right of way, but can be located in the common space.

Section 7.5. Development Performance Standards.

A. All residential structures and detached garages within The Village will have at least 40% concrete siding, decorative concrete block, brick, stone or E.F.I.S., use at least two material types and be similar in exterior appearance. All buildings

shall be constructed in accordance with the current building code of the city of Cheyenne in effect during construction.

No two-townhouse units will be identical. Each townhouse unit will be different in one way of each of the following categories:

- 1) Material to include color and exterior makeup (siding, rock or brick)
- 2) Structure to include roofline and front porch design.

B. Mixed use structures within The Village will have at least 40% concrete siding, decorative concrete block, brick, stone or E.F.I.S. be similar in exterior appearance. All buildings shall be constructed in accordance with the current building code of the city of Cheyenne in effect during construction.

The fronts of the buildings and those facing public streets shall include architectural features including:

1. Repeating architectural features, bays, windows, store front type windows, and wall plane changes.
2. Detailing to include entryways, awnings, color changes, brackets and decorative wall lighting.

There will be minimum height elevation changes for parapets and cornices of 2' every 40' or when tenant occupancies change including adjacent buildings.

Each unit exterior of a building will be a distinct color, texture and façade based upon tenant space with a maximum distance of 40 feet before a change is required.

Elevation and building footprints shall be submitted prior to building permit application for mixed use and commercial buildings.

Detached sidewalks will be incorporated throughout the plat with sidewalks attaching to roads at corners to facilitate pedestrian crossings.

C. Common Space and parking areas will incorporate the following.

1. There will be at a minimum of five public pads within The Village. The public pads will incorporate site furnishings, plantings, bike racks and benches and will be an integral part of the buildings within common areas and along Old Town Lane. There will be a minimum of a total of 16 of the above items on the public pads within The Village.

There will be decorative lighting in the public pads, parking lots and along Old Town Lane for the length of the commercial development and will incorporate dark sky principals on the entire development including on the buildings. This includes shielding and design so that no direct lighting leaves the property boundaries and poles no higher than 20 feet.

There will be a gateway feature along Old Town Lane to display the development name.

Pedestrian crossing will be located at narrowed road sections and pedestrian access easements will be continued to north and south boundary property lines of The Village to integrate flow between uses.

Transit pick up locations will be between two pedestrian crossings.

Trash containment areas shall be constructed with a decorative concrete block, stucco, or E.F.I.S. There will be a minimum of two commons pace trash containment areas. The restaurant will have its trash containment area within its lot boundary.

Grass pavers will connect the southern end of the alley back to Sycamore Road along the access easement.

Section 7.6. Landscaping Requirements.

A. Street Tress will be placed along Powderhouse Road, Sycamore Road and Old Town Lane on an average of every 30 feet. Trees along Sycamore Road and Old Town Lane will count toward internal landscaping requirements.

B. Internal Landscaping will be one (1) tree for every 500 feet of 15% of the property area not including right of way. This calculation will require 74 trees.

C. Up to 50% of the trees can be substituted by five (5) bushes, a boulder, a fountain, a picnic area, a bench, a gazebo or a unique design feature as approved by the Development Director. Bushes cannot exceed 30% of the amount of required trees and each other item shall not exceed 10% of the required amount of trees.

Section 7.7. Fencing Regulations.

There will be no fencing within The Village except along the north and south plat boundary, which will provide openings for pedestrian connections. Boundary fencing will be in compliance with City Code Section 17.116.050. Trash containment areas will be screened and match the architectural design of the main structures. Any screening of outside storage within a buildings allowable lot area will match the exterior character and detail of the attached building.

Section 7.8. Signage.

Commercial Buildings

Wall Signs - Wall signs are allowed provided the sign does not exceed twenty (20) percent of the wall area the business owns. Wall signs will be integrated into the architectural design and color of the development.

Ground or Freestanding Signs – Two freestanding or ground signs will be allowed along Powderhouse Road on private property with a maximum height of sixteen

(16) feet and fifty (50) square feet per side. All signs must be outside of the site distance triangle.

Temporary for sale or for rent signs after final development shall be permitted. Each temporary for sale or for rent sign shall not exceed 2' x 4' within the commercial and townhouse development and must be removed ten days after rented or sold.

Section 7.9. Parking.

Each townhouse will have two off street parking spots located within its lot.

Commercial/Residential Units will have at a minimum 160 spaces within the parking areas and garages and shall meet the 2006 Road, Street & Site Planning Design requirements for parking design and ADA requirements when the development site plan is submitted.

Section 7.10. Ownership and Maintenance of Common Area.

Each owner will be a member of The Village Owners Association, which will own the common space, and parking areas. The owners' association will be responsible for management and maintenance of the open space and common areas.

Section 7.11. Development Standards Incorporated by Reference Herein.

If the regulations and development standards of this PUD do not address a specific development standard or regulation pertaining to a lot or Site within the PUD, the most current edition of the Cheyenne Unified Development Code (UDC) shall govern.

Section 8. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 6 above when this ordinance takes effect in accordance with Section 8 below.

Section 9. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 10. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

Publish date: _____